

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

Nicholas Campbell,

Plaintiff,

-against-

THE CITY OF NEW YORK, LT.. CHRISTOPHER CHENG,
Individually and in his Official Capacity and P.O.'s
"JOHN DOE" #1-5, Individually and in their Official
Capacity the name John Doe being fictitious, as the true
names are presently unknown),

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
December 5, 2013

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

1. Michael A. Cardozo
Corporation Counsel of the
City of New York
New York, NY 10007
2. Lt. Christopher Cheng
Patrol Borough Manhattan South
230 E. 21st Street
New York, NY, 10010

Index No.:

Purchased:

SUMMONS

Jury Trial Demanded

Plaintiff designates New York County
as the place of trial.

The basis of venue is:
Place of Incident

SUPREME COURT OF THE STATE OF NEW YORK
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Defendants.

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Plaintiff NICHOLAS CAMPBELL, by his attorneys, COHEN & FITCH LLP,
complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff NICHOLAS CAMPBELL is an African American male and has been at all relevant times residents of NEW HAVEN County in the City of Waterbury and State of Connecticut.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants Lt. Christopher Cheng and P.O.s "JOHN DOE" #1-#5 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

8. On or about September 8, 2012 in the County of New York, City, and State of New York, plaintiff was in the vicinity of 42nd Street and 5th Ave, New York, New York.

9. Plaintiff was riding his motorcycle and was stopped at a traffic light when he heard sirens coming from behind him.

10. Plaintiff legally moved into the right lane to make room for the emergency vehicle and was struck in the rear by a police vehicle, driven by defendant Cheng, causing him to fall into the middle of the intersection on his motorcycle.

11. As a result of the accident, plaintiff sustained physical injury requiring medical attention and his motorcycle was completely totaled.

12. Thereafter, defendant issued plaintiff two (2) traffic tickets for Disobeying Traffic Control Device and Improper Right Turn.

13. At no time on September 8, 2012, did plaintiff disobey a traffic control device, make an improper right turn or behave unlawfully in any way.

14. In connection with plaintiffs' arrest, defendant Cheng filled out false and/or misleading police reports and forwarded them to the traffic court.

15. Thereafter, defendant Cheng repeatedly gave false and misleading information regarding the facts and circumstances of plaintiffs' traffic tickets to the traffic court.

16. Specifically, defendants falsely alleged that plaintiff NICHOLAS CAMPBELL was disobeying traffic control devices and made an improper right turn.

17. As a result of his unlawful tickets, plaintiff NICHOLAS CAMPBELL has spent approximately fifteen (15) months making court appearances to date.

18. Upon information and belief, all charges against plaintiff will be dismissed in their entirety.

19. As a result of the foregoing, plaintiff sustained, inter alia, mental anguish, physical injury, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

STATE CLAIMS

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "19" with the same force and effect as if fully set forth herein.

21. On or about September 27, 2012 and within ninety (90) days after the claim herein accrued, the plaintiff NICHOLAS CAMPBELL duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

22. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

23. Defendant THE CITY OF NEW YORK demanded hearings pursuant to General Municipal Law § 50-h and a hearing took place for plaintiff NICHOLAS CAMPBELL on October 8, 2013.

24. This action was commenced on December 5, 2013, within one (1) year and ninety (90) days after the cause of action herein accrued.

25. Plaintiff has complied with all conditions precedent to maintaining the instant action.

26. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF
FALSE ARREST

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “26” with the same force and effect as is fully set forth herein.

28. Defendant police officers arrested plaintiff in the absence of probable cause and without a warrant.

29. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and caused to be falsely detained, confined

and by the defendants in that plaintiff was not free to leave while defendant issued illegal traffic summonses. The aforesaid actions by the defendants constituted a deprivation of plaintiff's rights.

SECOND CLAIM FOR RELIEF
ASSAULT

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "29" with the same force and effect as if fully set forth herein.

31. Defendants' aforementioned actions placed plaintiffs in apprehension of imminent harmful and offensive bodily contact.

32. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF
BATTERY

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "32" with the same force and effect as if fully set forth herein.

34. Defendant police officers touched plaintiff in a harmful and offensive manner.

35. Defendant police officers did so without privilege or consent from plaintiffs.

36. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "36" with the same force and effect as if fully set forth herein.

38. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

39. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

40. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

41. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

42. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “42” with the same force and effect as if fully set forth herein.

44. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

45. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

46. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

47. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

SIXTH CLAIM FOR RELIEF
NEGLIGENCE

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "47" with the same force and effect as if fully set forth herein.

49. That the aforesaid collision was substantially caused by reason of the negligence of the defendants, without any fault or negligence on the part of the plaintiff contributing thereto.

50. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to keep their motor vehicle under proper management and control.

51. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to observe the conditions of the roadway.

52. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to give any notice, warning or signal of their approach;

53. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in operating their motor vehicles at an excessive rate of speed.

54. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to keep their motor vehicle at a reasonable and sufficient distance from plaintiff.

55. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to observe plaintiff.

56. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to keep a proper lookout for plaintiff.

57. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to see what was there to be seen;

58. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to take appropriate evasive maneuvers to avoid colliding with plaintiff.

59. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in violating the traffic controls and/or roadway markings thereat;

60. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in failing to observe the rules of the road.

61. That defendants were negligent, careless and reckless in the ownership, operation, maintenance, and control of the aforesaid vehicle; in violating the Vehicle and Traffic Laws of the State of New York and in otherwise acting in a reckless, careless and negligent manner under the circumstances then and there existing.

62. That by reason of the foregoing, plaintiff sustained severe and permanent physical injuries.

63. That plaintiff sustained serious injuries as defined by § 5102(d) of the Insurance Law of the State of New York.

64. That plaintiff sustained economic loss greater than basic economic loss as defined by § 5104 of the Insurance Law of the State of New York.

65. That this action falls within one or more of the exceptions set forth in New York Civil Practice Laws and Rules 1602, including but not limited to, the exemption set forth in subdivision (6).

66. Due substantially to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, emotional distress, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

FEDERAL CLAIMS

SEVENTH CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “66” with the same force and effect as if fully set forth herein.

68. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

69. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

70. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

71. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

EIGHTH CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "72" with the same force and effect as if fully set forth herein.

74. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and caused to be falsely detained and confined, without any probable cause, privilege or consent.

75. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, without probable cause.

NINTH CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "75" with the same force and effect as if fully set forth herein.

77. Defendants issued legal process to place plaintiff under arrest.

78. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

79. Specifically, defendants issued plaintiff summonses to cover up their negligence in causing the accident with plaintiff.

80. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

81. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, without probable cause.

WHEREFORE, plaintiff respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
December 5, 2013

BY: 
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115
jfitch@cohenfitch.com
gcohen@cohenfitch.com

ATTORNEY'S VERIFICATION

GERALD COHEN, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff NICHOLAS CAMPBELL in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 December 5, 2013



Gerald Cohen

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
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Defendants.

SUMMONS AND COMPLAINT

COHEN & FITCH, LLP
Plaintiff
233 BROADWAY
SUITE 1800
NEW YORK, NEW YORK 10279
(212) 374-9115

Attorneys for

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

Dated:

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of a
NOTICE OF ENTRY entered in the office of the clerk of the within named Court on

☐

NOTICE OF SETTLEMENT at
Dated: that an Order of which the within is a true copy will be presented for settlement to the Hon.
one of the judges of the within name Court,

, at

M.

COHEN & FITCH, LLP
Plaintiff
233 BROADWAY, SUITE 1800
NEW YORK, N.Y. 10279
(212) 374-9115

ATTORNEY FOR